

Contract for Deed Agreement

1. The Parties:

2325 Cool Springs Rd Real Estate Trust dated Sept 5, 2024, (Seller)

Whose principal address is:

2156 Haig Point Way

Raleigh, NC 27604

And the following Purchaser:

Thomas Shorb, (Purchaser)

Address:

2901 Kendale Dr.

Sanford, Nc 27330

2. Date of Agreement: This Contract for Deed is made and effective as of the date of the last signature set forth below each party's signature.

3. Real Property: The Property which is subject to the Contract for Deed is described as follows (and fully described in the attached Exhibit A):

Property Address:

2325 Cool Springs Rd

Sanford, NC 27330

Legal Description

0.469 Acres Cool Springs Rd Wst

County of: Lee

4. Sales Price: Total Purchase Price to be paid by Purchaser is payable as follows:

- Binder deposit which will remain as a binder until closing, unless sooner forfeited or returned, according to the provisions in this Agreement.
- Additional binder deposit due within _____ days after date of this agreement.
- Balance due upon Seller's vacancy or Closing Date, whichever is last, (not including Purchaser's closing cost, prepaid items
- or prorations) in U.S. cash or locally drawn certified or cashier's check approximately
- Proceeds of a new loan to be executed by Purchaser to any lender other than Seller.
- Purchase money loan to Seller on terms set forth in Paragraph 2B.
- Other financing _____.
- Existing mortgage balance encumbering the Property to be taken subject to by Purchaser (approximately).
- Total Purchase Price - approximately _____ exactly _____

	100.00
	19,900.
	255,948
	275,948

5. ADDITIONAL CHARGES AND FEES: Purchaser agrees to provide an additional charges and fees associated with the recording of a Memorandum of (this) Contract for Deed and administrative costs of the Seller.

a. Purchaser Will Pay the following options if they want them:

☒ Appraisal

☒ Survey

☒ Wood Destroying Organism Report

☒ Real estate brokerage fee

☐ Other _____

b. Seller Will Pay:

☒ Closing Costs

☒ Transfer tax

☒ Title insurance policy

☒ Attorney's fee

☒ Closing Costs

☒ Recording fees

☒ Note stamps

☒ Intangible tax

☒ Transfer Tax

☒ Satisfaction and recording fee

☐ Credit reports

☐ Loan origination fee

☐ Loan insurance premium

☐ Other _____

☐ All other charges required by lender which Purchaser is prohibited from paying by law or regulation.

☐ Repairs or replacements, in addition to those in paragraph 9, not to exceed \$ _____

☐ All mortgage payments or condominium and association fees will be current at Seller's expense at the time of closing.

6. **INTEREST RATE:** Unpaid principal shall accrue interest at a rate of 3.000%(APR) for the first 60 installments. After 60 months the interest rate will go to 7.000%(APR), with interest to be amortized over the total term of this Contract for Deed. The Amount of Each Installment Payment above includes any interest payable, property Insurance, and escrowed Property Tax. Late payments shall accrue interest at a rate of four percent (4%) on any delinquent monies owed.

7. **INSTALLMENT PAYMENTS:**

- a. For the first 60 instalments:
- i. Due Date of the First Installment Payment: 4/1/2025
 - ii. Due Date of the Last Installment Payment: 3/1/2030
 - iii. Amount of Each Installment Payment includes
 - 1. Principal and Interest: 1,216.14
 - 2. Property Insurance: 134.17
 - 3. Property Tax: 188.55
 - 4. Total Monthly Payment: 1,538.86
 - iv. Total Number of Installment Payments: 360
- b. For the remaining Installment payments
- i. Due Date of the First Installment Payment: 4/1/2030
 - ii. Due Date of the Last Installment Payment: 3/1/2055
 - iii. Amount of Each Installment Payment includes
 - 1. Principal and Interest: 1,216.14
 - 2. Property Insurance: 134.17
 - 3. Property Tax: 188.55
 - 4. Total Monthly Payment: 2,069.16
 - iv. Total Number of Installment Payments: 360

8. **AMORTIZATION SCHEDULE:** A Full amortization schedule, see Exhibit "B" will be provided at closing.

9. **PENDING ORDERS OR ADVERSE CONDITIONS:** If any pending order of a public agency or other matter of public record adversely affecting the property is known, said pending order or condition is set out below by the Seller:

There is an existing Deed of Trust representing a lien on title recorded at Book 1643, Page 609, Lee County Register of Deeds from Evelyn Gonzalez to John F. Wible, PA, Trustee for Ameris Bank. This Deed of Trust was subject to pending foreclosure and has been reinstated.

10. **RIGHT TO CURE DEFAULT:** A PURCHASER'S RIGHTS UNDER A CONTRACT FOR DEED SHALL NOT BE FORFEITED EXCEPT AS PROVIDED IN N.C. GEN. STAT. CHAPTER 47H. A CONTRACT FOR DEED CANNOT BE FORFEITED UNLESS A BREACH HAS OCCURRED IN ONE OR MORE OF THE PURCHASER'S EXPRESS OBLIGATIONS UNDER THE CONTRACT AND THE CONTRACT PROVIDES THAT AS A RESULT OF SUCH BREACH THE SELLER IS ENTITLED TO FORFEIT THE CONTRACT. EXAMPLES OF BREACH OF CONTRACT INCLUDE LACK OF PAYMENT EXTENDING BEYOND 15 DAYS OF DUE DATE, PROHIBITED USE OF PROPERTY, FRAUDULENT IDENTIFICATION, AND FRAUDULENT PAYMENTS. FURTHERMORE, THE PURCHASER'S RIGHTS SHALL NOT BE FORFEITED UNTIL THE PURCHASER HAS BEEN NOTIFIED OF THE INTENT TO FORFEIT IN ACCORDANCE WITH N.C. GEN. STAT. 47H-4 AND BEEN GIVEN A RIGHT TO CURE THE DEFAULT AND HAS FAILED TO DO SO WITHIN THE TIME PERIOD ALLOWED. A TIMELY TENDER OF CURE SHALL REINSTATE THE CONTRACT FOR DEED.

11. **PROHIBITED USE OF PROPERTY:** Any unauthorized or unpermitted construction, improvements, excavation (to include clearing, logging, and planting), or otherwise altering the property from its original condition at the time this contract is executed is prohibited. Authorization may be given by the Seller for certain improvements if Purchaser submits an application in writing to make changes and receives authorization in writing from Seller. Authorization will be withheld or granted solely at the discretion of the Seller. Additionally, any use not permitted by local, state, and federal laws and ordinances is prohibited.

12. **RESPONSIBILITY FOR TAXES, INSURANCE, REPAIRS, DUES:** Seller shall be responsible for taxes, and dues for the Property throughout the contractual term set forth herein.

13. **NO PREPAYMENT PENALTY:** Purchaser may prepay some or all of the remaining Balance Owed on this contract at any time.

14. **RESIDENTIAL PROPERTY DISCLOSURE:** Purchaser waives the right to obtain a Residential Property Disclosure pursuant to Chapter 47E of the N.C. General Statutes and has had an adequate opportunity to inspect the Property. The Property described herein is provided "as is" to the Purchaser.
15. **PROHIBITED USE OF PROPERTY:** Any unauthorized or unpermitted construction, improvements, excavation (to include clearing, logging, and planting), or otherwise altering the property from its original condition at the time this contract is executed is prohibited. Authorization may be given by the Seller for certain improvements if Purchaser submits an application in writing to make changes and receives authorization in writing from Seller. Authorization will be withheld or granted solely at the discretion of the Seller. Additionally, any use not permitted by local, state, and federal laws and ordinances is prohibited.
16. **RESPONSIBILITY FOR TAXES, INSURANCE, REPAIRS, DUES:** Seller shall be responsible for taxes, and dues for the Property throughout the contractual term set forth herein. The Purchaser shall be responsible for insurance, repairing any damage to the property, and any citations assigned to the property.
17. **NO PREPAYMENT PENALTY:** Purchaser may prepay some or all of the remaining Balance Owed on this contract at any time.
18. **RESIDENTIAL PROPERTY DISCLOSURE:** Purchaser waives the right to obtain a Residential Property Disclosure pursuant to Chapter 47E of the N.C. General Statutes and has had an adequate opportunity to inspect the Property. The Property described herein is provided "as is" to the Purchaser.
19. Seller agrees to deliver the *Property* in its PRESENT AS IS CONDITION except as otherwise specified herein. Seller does hereby certify and represent that Seller has legal authority and capacity to convey the property with all improvements. Seller further certifies and represents that Seller knows of no latent defects to the property and knows of no facts materially affecting the value of the property except the following: Description of problems: Purchaser will be responsible to dispose of all contents. Purchaser [X] has [] has not inspected the property and HAS NOT RELIED UPON ANY REPRESENTATIONS MADE BY ANY REAL ESTATE AGENT in describing the property, and Purchaser accepts the property in its PRESENT AS IS CONDITION, except as otherwise specified herein.
20. Title Examination and Time for Closing:
- If title evidence and survey, as specified above, show Seller is vested with a marketable title, subject to the usual exceptions contained in title insurance commitments (such as exceptions for survey, current taxes, zoning ordinances, covenants, restrictions and easements of record), the transaction will be closed and the deed and other closing papers delivered on or before [] _____, [X] 15 days after the date of acceptance, or [] _____ days after date of satisfaction of all conditions in paragraph 19 unless extended by other conditions of this Agreement or this agreement is cancelled by the Purchaser.
 - If title evidence or survey reveal any defects which render the title unmarketable, Purchaser will have 7 days from receipt of title commitment and survey to notify Seller of such title defects and Seller agrees to use reasonable diligence to cure such defects at Seller's expense and will have 30 days to do so, in which event this transaction will be closed within 10 days after delivery to Purchaser of evidence that such defects have been cured. Seller agrees to pay for and discharge all due or delinquent taxes, liens and other encumbrances, unless otherwise agreed. If Seller is unable to convey to Purchaser a marketable title, Purchaser will have the right to terminate this agreement at the same time returning to Seller all title evidence and surveys received from Seller, or Purchaser will have the right to accept such title as Seller may be able to convey and to close this transaction upon the terms stated herein, which election will be exercised within 10 days from notice of Seller's inability to cure.
21. Additional Terms, Conditions or Addenda (lettered a,b,c,d, etc.)
- Seller will provide an Amortization Schedule, annually, indicating the complete payments required, with its components.
 - Seller agrees to email copies of the bills validating these amounts.
 - Seller will replace the flooring & carpet throughout the house, not to exceed the following allowance \$_____
 - Other Improvements that the Purchaser desires will be done, at the Purchasers expense, by mutual agreement, before occupation. Seller agrees to manage additional work with their vendors at no markup.
 - _____
 - _____
 - _____
 - _____
 - _____
 - This is explicitly a Contract for Deed. No transfer of deed will be done until the terms of the purchase are satisfied. See the Promissory Note for details.
 - If the Purchaser defaults on terms of this contract or the promissory note, the remedy for the Seller is eviction, not foreclosure.
 - Closing will be required to be with Capital City Law.
22. Personal Property: included in the purchase price are all fixed equipment including ceiling fans, drapery hardware, attached lighting fixtures, mailbox, fence, plants and shrubbery as now installed on the property.
- And these additional items _____
 - Items specifically excluded from _____

23. **RIGHT TO CANCEL:** Purchaser may exercise the right to cancel this contract for deed until midnight of the third business day following of this contract for deed or delivery of a copy of the contract with the required minimum contents, whichever occurs later. If Purchaser cancels this contract, the seller shall, not later than the tenth day after the date the seller receives the purchaser's notice of cancellation, return to the Purchaser any and all property exchanged or payments made by the purchaser under the contract minus an offset of an amount equal to the fair rental value of the use of the property during the duration of the tenant's possession of the property plus an amount necessary to compensate the seller for any damages caused to the property by the purchaser beyond normal wear and tear.

24. Signatures:

Signed sealed on the date herein stated

Investment Services LLC, Trustee – Wes Browning, Manager
Seller's Signature
02/ /2025.
Date of Offer

[] Agent [X] **Seller**, by the signature below, acknowledge receipt of \$ **100.00** [] Cash [] Check, as binder deposit, which is the amount mentioned in paragraph 1A of this Agreement.

Seller's Signature

Date

Under penalty of perjury, Affiant declares that he/she has examined this Affidavit and that to the best of his/his personal knowledge and belief, the contents of said Affidavit are true and correct.

This the ____ day of _____, 2025. (SEAL)

(Affiant)

STATE: North Carolina

COUNTY: Lee

I, _____, a Notary Public of the County and State aforesaid, do hereby certify that

_____ personally appeared before me this day and acknowledged the execution of the foregoing instrument. Witness my hand and notarial seal, this the ____ day of _____, 2025. Notary Signature _____

Notary Public My Commission expires: _____

Purchaser's Signature

Date of Acceptance

	02/ /2025.
Purchaser's Signature	Date of Acceptance

This the _____ day of _____, 2025. (SEAL)

_____ (Affiant)

COUNTY: Lee

I, _____, a Notary Public of the County and State aforesaid, do hereby certify that

_____ personally appeared before me this day and acknowledged the execution of the foregoing instrument. Witness my hand and notarial seal, this the ____ day of _____, 2025. Notary Signature_____

Notary Public My Commission expires: _____

